LANDLORDHEAVEN
LEGAL DOCUMENTS FOR LANDLORDS

Tribunal Bundle Cover Sheet

Pack: Section 13 Defensive Pack

Property: 10 Sample Road, Leeds, LS1 1AA

Tenant(s): Alex Tenant, Jordan Tenant

Prepared on: 01 May 2026

Rules version: england_assured_section13_2026-05-01

Bundle purpose

Prepared for any tenant challenge to the proposed rent under section 13 of the Housing Act 1988.

Recorded service method and date: First class post on 25 March 2026.

Recorded proposed new rent and start date: £1285.00 per month from 01 June 2026.

Core exhibits are the signed Form 4A notice, the market-rent justification report, the argument summary, the service record, and the supporting response materials relied on by the landlord.

LANDLORDHEAVEN
LEGAL DOCUMENTS FOR LANDLORDS

Tribunal Bundle Index

Bundle cover sheet (1 page)

Exhibit A: Form 4A rent increase notice (9 pages)

Exhibit B: Rent increase justification report (3 pages)

Exhibit C: Tribunal Argument Summary (1 page)

Exhibit D: Proof of service record (1 page)

Exhibit E: Rent increase cover letter (1 page)

Exhibit F: Tribunal defence guide (1 page)

Exhibit G: Landlord response template (1 page)

Exhibit H: Tribunal legal briefing (1 page)

Ministry of Housing, Communities & Local Government

Form 4A

Landlord's notice proposing a new rent for assured tenancies in the private rented sector

Housing Act 1988 section 13(2), as amended

This notice tells you that your landlord is proposing a new rent.

For use in the private rented sector in England only. For tenancies in the social rented sector, use **Form 4**.

To propose a new rent for an assured agricultural occupancy in the social rented sector use **Form 5**, and in the private rented sector use **Form 5A**.

This notice must be served on the tenant(s) at least two months before the new rent can start.

Note to landlord: You need to be able to evidence that you served the notice on your tenant. If your written tenancy agreement specifies agreed methods of service, use one of those.

If it does not you can serve it by handing it over to your tenant in person, leaving it at the tenant's address or sending it by registered post.

Information for the tenant

This notice is given by your landlord to propose that you pay an increased rent from the date in **question 4.6. You should read this notice in full immediately.**

If you disagree with the proposed rent or have any questions about this notice you should discuss it with your landlord and/or seek advice.
To challenge the proposed rent you must take action before the date given in question 4.6.

There is information in **Section 5** on how to take action if you disagree with the proposed rent and where you can find advice.

©Crown copyright 2026

1. The tenant(s) details

1.1 Name(s) of tenant(s)

Notes to landlord: You can complete and sign this notice electronically or by hand.

Note 1.1: If it is a joint tenancy, provide the names of each of the tenants.

1.2 Address of premises to which the tenancy relates

First line of address

Second line of address

Town or city

County (optional)

Postcode

2. Details of the landlord

2.1 Name

Note 2.1: It is important that your tenant(s) can contact someone about this proposed rent increase.

2.2 Contact address

First line of address

Second line of address

Town or city

County (optional)

Postcode

2.3 Contact details

Phone number

Email

Note to landlord 2.3: Phone number and email are recommended but optional.

If you provide an email address, you agree that the tenant and the tribunal may use this address to serve documents on you.

3. Details of the agent (if applicable)

3.1 Name

3.2 Contact address

First line of address

Second line of address

Town or city

County (optional)

Postcode

3.3 Contact details

Phone number

Email

Note to agent 3.3: Phone number and email are recommended but optional.

If you provide an email address, you agree that the tenant and the tribunal may use this address to serve documents on you.

4. The rent

4.1 Current rent — Frequency (per week, per month)

£

4.2 The tenancy started on

Day Month Year

4.3 The most recent rent increase (if applicable) was on

Day Month Year

4.4 Give the date of the first rent increase after 11 February 2003.

Day Month Year

4.5 The landlord is proposing a new rent of

Amount — Frequency (per week, per month)

£

4.6 The new rent will start on

Day Month Year

4.7 Payments for certain bills or charges may be included in your rent. The amount of the charges per tenancy period (if any) are:

	Amount included and separately identified (enter 'nil' if appropriate)	
Charges	**Existing charge**	**Proposed new charge**
Council tax	£	£
Water charges	£	£
Electricity, gas or other fuel	£	£
Communication services	£	£
Fixed service charges	£	£

Notes to landlord

Note 4.1: Insert how often the rent is paid, such as per week, fortnight, four weeks, month. This is the tenancy period. This must be a month or less.

Note 4.3: If there has not been a rent increase since the start of the tenancy, leave blank.

Note 4.4: This question is required to show whether 52 weeks or 53 weeks need to pass since the last increase. See **Note A3**. If there has not been an increase since 11 February 2003, leave blank.

Note 4.5: Insert how often the rent should be paid, such as per week, fortnight, four weeks, month. This is the tenancy period. **This must be a month or less.**

Note 4.6: There are rules about how soon this date can be. See guidance in **Note A** at the end of this notice.

Note 4.7: It is helpful for the tenants to understand the breakdown of charges included in the rent. Landlords should only include charges which are included in the rent and which the tenant does not pay directly to a third party, or to the landlord in addition to rent.

As this represents a part of the full rent, the frequency is the same as the tenancy period mentioned in **question 4.5**.

Communication services can include access to a landline telephone, the internet, cable TV and Satellite TV.

Follow the guidance in **Note B** at the end of this notice.

Signed

Landlord

Landlord's Agent

Print name

Date
Day Month Year

Note to landlord: If you are joint landlords either each sign this notice using the additional signatures box below, or agree for one landlord to sign this notice on behalf of you all.

Additional signatures for joint landlords

1. Signature, full name, address, and capacity of signatory (landlord).

2. Signature, full name, address, and capacity of signatory (landlord).

3. Signature, full name, address, and capacity of signatory (landlord).

5. What you (the tenant) should do next

5.1 **If you accept the proposed new rent**, you should make arrangements to pay it.

- If you pay by standing order, update the amount. Get in touch with your bank if you are unsure how to do this.
- If you are claiming Universal Credit, you should tell the Department for Work and Pensions once the rent increase starts. You can find advice at: www.gov.uk/universal-credit/changes-of-circumstances
- If you are claiming Housing Benefit, you should tell your Housing Benefit Office in your local authority. You can find advice at: www.gov.uk/housing-benefit/report-a-change-of-circumstances
- To check affordability, you can search for Local Housing Allowance rates in your local authority at: https://lha-direct.voa.gov.uk/

5.2 **If you do not accept the new rent**, there are steps you must take before the starting date shown in **question 4.6**. The new rent will start from this date unless you take one of the following actions:

- Agree with your landlord, in writing, to change or delay the rent increase.
- Refer the new rent to the tribunal if you believe the proposed rent is higher than the market rate, or if you believe there is another problem with this notice. For example, if the landlord did not give it to you at least two months before the date of the proposed increase.

The application to the tribunal for a determination of a market rent can be found at:
https://www.gov.uk/guidance/apply-for-a-market-rent-determination

The landlord will be able to reply to your application, and you will then have the opportunity to respond to their reply.

The tribunal must receive the application before the start date your landlord has given in **question 4.6**. If you refer the proposed new rent to the tribunal, tell your landlord or they may otherwise assume you agree with the new rent.

The tribunal can consider other factors like the condition of the property when deciding what the rent for your home should be.

The tribunal will decide what rent the landlord could reasonably expect if the property were let on the open market on the same terms. The amount the tribunal decides might be higher or lower than the rent your landlord has proposed. **However, you will not be required to pay more than the rent the landlord first proposed in question 4.5.** You do not have to pay the new rent amount until the tribunal has made its decision.

You might find it helpful to check similar properties in your area to get an idea of the market rate.

5.3 If you have any questions about this notice or are worried you might not be able to pay your rent, you should speak with your landlord and/or seek advice. These are places you can find advice:

- the Shelter website: www.shelter.org.uk
- a citizens advice, housing advice centre, or law centre
- a legal representative – you can find a solicitor at: https://solicitors.lawsociety.org.uk/

If you're worried about becoming homeless, you should contact your local authority for support.

Note A: When the proposed new rent can start

A1. The date in **question 4.6** of this notice must meet the three requirements below. These requirements are set out in section 13(2) of the Housing Act 1988, as amended by the Regulatory Reform (Assured Periodic Tenancies) (Rent Increases) Order 2003 and the Renters' Rights Act 2025.

A2. **First requirement:** in all cases, this notice must be served at least two months before the new rent can start.

A3. **Second requirement:** The first rent increase cannot start until 52 weeks have passed since the tenancy began. For assured agricultural occupancies, this rule is different, and you should use **Form 5** in the social rented sector or **Form 5A** in the private rented sector.

In most cases, any further rent increase must be at least 52 weeks after the previous increase. However, the new rent date cannot be more than 6 days before the anniversary of the date given in **question 4.4**. If it would be, the landlord must wait an extra week (53 weeks in total) before the increase can start.

This rule prevents rent increase dates from drifting earlier each year, because 52 weeks is slightly less than a calendar year. It ensures that rent increases happen on a consistent annual cycle, protecting tenants from increasingly early rent demands. For example, for a weekly tenancy, the landlord could choose a fixed date such as the first Monday in April each year. This rule, introduced on 11th February 2003, is the reason for **question 4.4**.

A4. **Third requirement:** in all cases, the new rent must start at the beginning of a tenancy period. First example: if a monthly tenancy starts on the 20th of April, the new rent must start on the 20th day of the month when the increase begins. Second example: if a weekly tenancy started on a Monday, the new rent must begin on a Monday.

Note B: Guidance on charges included in the rent

B1. In the second and third columns of the table in **question 4.7**, write either 'nil' or the amount of the proposed charge (which may be the same as now). Only include bills or charges if they are included within the rent and the tenant does not pay these directly to a third party, or to the landlord in addition to rent. Only include service charges where the tenant has agreed in the tenancy agreement to pay a fixed amount.

Do not include any variable service charges (within the meaning of section 18 of the Landlord and Tenant Act 1985) that change based on costs.

Extra sheets

Include the number of the section and question which is being continued.

Signature

If necessary, continue on a separate sheet, remembering to sign and date it.

Date

Day Month Year

LANDLORDHEAVEN
LEGAL DOCUMENTS FOR LANDLORDS

Rent Increase Justification Report

This report explains why the proposed rent is supported by local comparable evidence.

The proposed rent is supported by current market evidence and sits within the lower-to-mid range of comparable properties locally.

The recorded comparables support the proposed rent and place it below the adjusted median of £1297.50 pcm.

Property: 10 Sample Road, Leeds, LS1 1AA

Key points

- Proposed rent: £1285.00 per month
- Local median: £1297.50 pcm
- Position: Below the adjusted median market rent
- Evidence strength: Strong evidence
- Comparable count: 8 total (8 source-backed; 8 within 90 days)

Market position

Rules version: england_assured_section13_2026-05-01

Adjusted market range: lower quartile £1272.50 pcm | median £1297.50 pcm | upper quartile £1318.75 pcm

Proposed rent: £1285.00 per month (£1285.00 pcm equivalent)

The proposed rent of £1285.00 per month sits between the lower quartile and the median of the adjusted comparable range, against an adjusted range of £1272.50 to £1318.75 pcm and a median of £1297.50 pcm.

Your proposed rent (£1285.00) sits below the median comparable rent (£1297.50 pcm), with strong evidence based on 8 recent source-backed comparables.

Strong evidence is based on 8 comparable homes, 8 source-backed entries, and 8 comparables dated within the 90-day freshness window. The file reads as a well-supported market review rather than a bare assertion.

Challenge band: Moderate likelihood of challenge - Based on where your proposed rent sits within the adjusted comparable rent range.

Evidence band: Strong evidence - Based on how many comparables you have, how recent they are, and how many are source-backed rather than manual or heavily overridden.

Recorded reasoning

The proposed rent of £1285.00 per month is below the adjusted median market rent of £1297.50 per month. Based on the comparables analysed under section 13(4) of the Housing Act 1988 (as amended), the proposed increase is presented as reasonable with a moderate likelihood of challenge and strong evidence. The proposed rent reflects recent local listings, condition, and current market positioning for similar two-bedroom homes.

Case-specific note: The proposed rent reflects recent local listings, condition, and current market positioning for similar two-bedroom homes.

LANDLORDHEAVEN
LEGAL DOCUMENTS FOR LANDLORDS

Rent Increase Justification Report

Comparable overview

- Comparable base: 8 comparable two-bedroom properties within 0.5 miles, with all listed within the last 90 days and all source-backed
- Challenge band: Moderate likelihood of challenge
- Evidence band: Strong evidence

Comparable picture

8 comparable 2-bed homes within 0.5 miles

Comparable 1: Flat 2, The Calls, Leeds LS1 at £1240.00 monthly, adjusting to £1240.00 pcm, dated 15 March 2026.

Comparable 2: Apartment 14, Sovereign Street, Leeds LS1 at £1265.00 monthly, adjusting to £1265.00 pcm, dated 15 March 2026.

Comparable 3: Flat 5, Brewery Wharf, Leeds LS10 at £1275.00 monthly, adjusting to £1275.00 pcm, dated 15 March 2026.

Comparables and adjustments

1. Flat 2, The Calls, Leeds LS1 | £1240.00 monthly | adjusted £1240.00 pcm

Source: scraped | https://example.com/leeds-rent-comparable-1

Distance: 0.20 miles

Source date (published): 15 March 2026

Adjustments: none recorded

2. Apartment 14, Sovereign Street, Leeds LS1 | £1265.00 monthly | adjusted £1265.00 pcm

Source: scraped | https://example.com/leeds-rent-comparable-2

Distance: 0.30 miles

Source date (published): 15 March 2026

Adjustments: none recorded

3. Flat 5, Brewery Wharf, Leeds LS10 | £1275.00 monthly | adjusted £1275.00 pcm

Source: scraped | https://example.com/leeds-rent-comparable-3

Distance: 0.40 miles

Source date (published): 15 March 2026

Adjustments: none recorded

4. Apartment 8, Park Row, Leeds LS1 | £1290.00 monthly | adjusted £1290.00 pcm

Source: scraped | https://example.com/leeds-rent-comparable-4

Distance: 0.40 miles

Source date (published): 15 March 2026

Adjustments: none recorded

5. Flat 11, Riverside Court, Leeds LS1 | £1305.00 monthly | adjusted £1305.00 pcm

Source: scraped | https://example.com/leeds-rent-comparable-5

Distance: 0.50 miles

Source date (published): 15 March 2026

Adjustments: none recorded

6. Apartment 6, Wellington Street, Leeds LS1 | £1315.00 monthly | adjusted £1315.00 pcm

Source: scraped | https://example.com/leeds-rent-comparable-6

Distance: 0.50 miles

Source date (published): 15 March 2026

Adjustments: none recorded

7. Flat 3, Dock Street, Leeds LS10 | £1330.00 monthly | adjusted £1330.00 pcm

Source: scraped | https://example.com/leeds-rent-comparable-7

Distance: 0.50 miles

Source date (published): 15 March 2026

Adjustments: none recorded

8. Apartment 21, East Parade, Leeds LS1 | £1345.00 monthly | adjusted £1345.00 pcm

Source: scraped | https://example.com/leeds-rent-comparable-8

Distance: 0.50 miles

Source date (published): 15 March 2026

Adjustments: none recorded

Final checks before service or filing

The tenant can refer the proposed rent to the tribunal up to the day before the proposed start date. The tribunal can set a lower rent, but not higher than the rent proposed in the notice.

Check that the service date, proposed start date, and rent figures match the final Form 4A notice, the proof of service record, and the comparable evidence file before sending or relying on them.

LANDLORDHEAVEN
LEGAL DOCUMENTS FOR LANDLORDS

Tribunal Argument Summary

This is the landlord's concise argument brief for the hearing file.

The proposed rent of £1285.00 per month is supported by current comparable evidence and sits below the adjusted median of £1297.50 pcm.

Adjusted median market rent: £1297.50 pcm

Argument in brief

The proposal should be judged by reference to nearby open-market comparables, not by the size of the increase from the previous rent alone.

The landlord relies on the comparable evidence in this file and says the proposed rent of £1285.00 per month should be judged against that market evidence, not against the size of the increase alone.

The proposed rent of £1285.00 per month is below the adjusted median market rent of £1297.50 per month. Based on the comparables analysed under section 13(4) of the Housing Act 1988 (as amended), the proposed increase is presented as reasonable with a moderate likelihood of challenge and strong evidence. The proposed rent reflects recent local listings, condition, and current market positioning for similar two-bedroom homes.

Strength of the evidence

Strong evidence is based on 8 comparable homes, 8 source-backed entries, and 8 comparables dated within the 90-day freshness window. The file reads as a well-supported market review rather than a bare assertion.

Comparable 1: Flat 2, The Calls, Leeds LS1 at £1240.00 monthly, adjusting to £1240.00 pcm, dated 15 March 2026.

Comparable 2: Apartment 14, Sovereign Street, Leeds LS1 at £1265.00 monthly, adjusting to £1265.00 pcm, dated 15 March 2026.

If challenged, say this

1. Anchor to evidence

Say: The proposed rent is based on comparable local properties and the recorded adjustments, not on a percentage increase alone.

2. Position in the range

Say: The figure sits below the adjusted median of £1297.50 pcm and should be judged against the adjusted comparable range recorded in the report.

3. Strength of evidence

Say: The proposal is supported by 8 source-backed comparables, with 8 listings inside the 90-day freshness window.

4. Bundle integrity

Say: The full bundle includes the notice, service record, justification report, Tribunal Argument Summary, and the supporting documents I rely on.

Important limit

This summary is a concise argument brief drawn from the saved case facts and comparable analysis. It supports presentation of the case, but it does not guarantee a tribunal outcome.

LANDLORDHEAVEN
LEGAL DOCUMENTS FOR LANDLORDS

CERTIFICATE OF SERVICE

(Proof of Service - support record only, not a prescribed court form)

IMPORTANT: This is a support record, not an official prescribed form

This form has been pre-filled with case information. You MUST:

* Select the actual method of service used (tick one box)
* Enter the actual date and time of service
* Sign and date this certificate after service is complete

1. PARTIES

Landlord/Claimant:

Tenant/Defendant:

Property Address:

2. DOCUMENT SERVED

I served the following document(s):

Notice Expiry Date: **01/06/2026**

3. SERVICE DETAILS (You must complete this section)

Date of Service:

Time of Service: (e.g., 10:30 AM)

Method of Service: (Tick ONE box only)

- Personal delivery (handed directly to tenant)
- Through the letterbox at the property
- By first class post (add 2 working days for deemed service)
- By recorded/signed for delivery (keep tracking receipt)
- By email (only if permitted by tenancy agreement)
- Other method (specify below)

Tracking Number: (if sent by recorded delivery)

Service Address: (if different from property)

4. DECLARATION

I declare that the information given in this certificate is true to the best of my knowledge and belief. I understand that if I make a false statement I may be liable for prosecution and that this certificate may be rejected by the court.

Name of person who served:

Signature: _____

LANDLORDHEAVEN
LEGAL DOCUMENTS FOR LANDLORDS

Section 13 Rent Increase Cover Letter

Enclosed is Form 4A proposing a new rent for this tenancy, together with a short explanation of the market evidence relied on.

This proposed rent is supported by 8 comparable two-bedroom properties within 0.5 miles, with all listed within the last 90 days and all source-backed and sits below the adjusted median of £1297.50 pcm. The notice file is ready to serve on the recorded facts.

Property: 10 Sample Road, Leeds, LS1 1AA

Tenant(s): Alex Tenant, Jordan Tenant

What is enclosed

1. Form 4A showing the proposed rent and the proposed start date.
2. A rent summary identifying the comparable evidence and the landlord position on market level.
3. Contact details for Taylor Landlord if the tenant wants to discuss the proposal before the new rent date.

Rent position in brief

Current rent: £1200.00 per month

Proposed rent: £1285.00 per month

Proposed start date: 01 June 2026

The proposed rent is supported by current market evidence and sits within the lower-to-mid range of comparable properties locally.

Comparable footing: 8 comparable two-bedroom properties within 0.5 miles, with all listed within the last 90 days and all source-backed.

Assessment: Moderate likelihood of challenge; Strong evidence.

The proposed rent of £1285.00 per month is below the adjusted median market rent of £1297.50 per month. Based on the comparables analysed under section 13(4) of the Housing Act 1988 (as amended), the proposed increase is presented as reasonable with a moderate likelihood of challenge and strong evidence. The proposed rent reflects recent local listings, condition, and current market positioning for similar two-bedroom homes.

Response window and service record

Recorded service method: First class post

Recorded service date: 25 March 2026

The tenant can refer the proposed rent to the tribunal up to the day before the proposed start date. The tribunal can set a lower rent, but not higher than the rent proposed in the notice.

If the tenant queries the figure, answer from the same rent figures, dates, and comparable evidence shown in Form 4A and the justification report.

LANDLORDHEAVEN
LEGAL DOCUMENTS FOR LANDLORDS

Tribunal Defence Guide

This guide shows how to present the Section 13 file clearly if the tenant refers the notice to the tribunal.

The landlord relies on the comparable evidence in this file and says the proposed rent of £1285.00 per month should be judged against that market evidence, not against the size of the increase alone.

Challenge band: Moderate likelihood of challenge. Evidence band: Strong evidence.

If the tenant applies

If the tenant refers the notice to the tribunal before the proposed start date, review the application promptly and answer from the same evidence base used in this pack.

Keep the Form 4A notice, proof of service record, justification report, Tribunal Argument Summary, photos, EPC, safety documents, and any negotiation correspondence together in one hearing file.

What to file and bring

Bring the merged tribunal bundle, printed copies of supporting evidence, and a short chronology covering the tenancy start date, any earlier increase, and the proposed effective date.

Use the same band wording throughout: Moderate likelihood of challenge and Strong evidence.

How to explain the evidence

Explain why the chosen comparables are relevant, how each adjustment affects the monthly equivalent, and why any user override was applied.

If a point is weak or missing, acknowledge it briefly and return to the strongest nearby comparables rather than overstating the file.

Keep your position consistent

Keep returning to the same market anchor: the proposal is based on 8 comparable two-bedroom properties within 0.5 miles, with all listed within the last 90 days and all source-backed, not on a target percentage increase.

If challenged, refer back to the recorded comparable table and the adjustments already applied.

Describe the proposal as below the adjusted median market rent and keep the explanation tied to the Form 4A, proof of service, and justification report rather than speculation about what the tribunal may do.

Be ready to explain property condition, tenancy-period alignment, and how the earliest valid start date was calculated under the post-1 May 2026 rules.

LANDLORDHEAVEN
LEGAL DOCUMENTS FOR LANDLORDS

Landlord Response Template

Suggested wording for a landlord reply if the tenant asks the tribunal to determine the market rent.

The recorded comparables support the proposed rent and place it below the adjusted median of £1297.50 pcm.

Property: 10 Sample Road, Leeds, LS1 1AA

Suggested response

I am the landlord or authorised agent for 10 Sample Road, Leeds, LS1 1AA. Form 4A was served on 25 March 2026 proposing a rent of £1285.00 per month from 01 June 2026.

The tenancy is currently charged at £1200.00 per month. The notice date and proposed start date were selected so the rent review timetable recorded in the file is met.

The landlord relies on the comparable evidence exhibited with the justification report. The analysis shows an adjusted median market rent of £1297.50 per month, with the proposed rent sitting below the adjusted median of £1297.50 pcm.

The comparable schedule uses nearby properties of similar size and adjusts them to a monthly equivalent so that like is compared with like. The proposal is based on that market evidence, not on a target percentage increase from the historic rent alone.

The landlord therefore asks the tribunal to determine that the proposed rent is supported by the market evidence, or alternatively to set the market rent at the nearest figure supported by the exhibited comparables.

Points to confirm in any witness statement or reply

1. Service method and service date: First class post on 25 March 2026.

2. Proposed start date: 01 June 2026.

3. Comparable base: 8 comparable two-bedroom properties within 0.5 miles, with all listed within the last 90 days and all source-backed.

4. Current banding: challenge risk is Moderate likelihood of challenge and evidence strength is Strong evidence.

5. Any manual adjustment or override should be tied back to a recorded factual difference in the comparable schedule and not left as an unexplained preference.

Evidence to attach

Attach the completed Form 4A, proof of service record, justification report, Tribunal Argument Summary, relevant exhibits, and any correspondence showing attempts to resolve the issue before a hearing.

If photos, EPC records, or tenancy documents are relied on, label them consistently with the bundle index so the tribunal can move from the statement to the exhibit without confusion.

LANDLORDHEAVEN
LEGAL DOCUMENTS FOR LANDLORDS

Tribunal Legal Briefing

This briefing pulls together the main statutory and practical points that sit behind the landlord evidence file.

The recorded comparables support the proposed rent and place it below the adjusted median of £1297.50 pcm.

Statutory framework

This pack is prepared on the basis of Housing Act 1988 section 13(2) and section 13(4), as amended for assured tenancies from 1 May 2026.

The new rent must be proposed on Form 4A, served with at least two months notice, aligned to the tenancy period, and timed so that the 52-week / 53-week anti-drift rule is satisfied.

What the tribunal considers

The tribunal considers the market rent for the property on the open market, assuming the same terms, letting circumstances, and tenant obligations unless the evidence shows a meaningful difference.

Comparable selection, adjustment discipline, and evidence freshness are therefore central. Unsupported or stale comparables weaken the landlord case even where the notice itself is valid.

Practical hearing points

Current banding: Moderate likelihood of challenge | Strong evidence.

Stay consistent with the report wording. Do not overstate the data. If the evidence is mixed, acknowledge that plainly and explain why the proposed figure still sits within a reasonable market range.

Points the file still has to prove

The landlord still needs to show that the notice was validly served, that the proposed start date satisfies the statutory timing rules, and that the proposed rent is the figure best supported by the comparable evidence on the tribunal date.

A clean service record, a stable chronology, and current comparables usually matter more than broad statements that the increase felt reasonable at the time it was proposed.

Common weakness points

Watch for stale comparables, missing source dates, unsupported manual overrides, or a mismatch between the dates in Form 4A, the proof of service record, and the narrative documents.

If one comparable is challenged, be ready to show why the remaining comparables still support the proposed rent or where the nearest supported alternative figure sits.